

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #11	CCRB Case #: 201901152	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Wednesday, 02/06/2019 6:30 PM	Location of Incident: Park Avenue between East 158th Street and East 159th Street; the 44th Precinct stationhouse		18 Mo. SOL 3/23/2021		Precinct: 44
Date/Time CV Reported Thu, 02/07/2019 12:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/07/2019 12:33 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Reynaldo Peña	17871	959056	044 PCT
2. POM Corey Graves	12570	956696	044 PCT
3. SSA Kevin Grayson	02293	921393	044 PCT
4. POM Maximo Gomez	06426	958643	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Reynaldo Peña	Abuse: At East 158th Street and Police Officer Reynaldo Peña stopped § 87(2)(b)	
B . SSA Kevin Grayson	Abuse: At East 158th Street and Park Avenue in the Bronx, Sergeant Kevin Grayson supervised the stop of § 87(2)(b)	
C . POM Reynaldo Peña	Force: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña used physical force against § 87(2)(b)	
D . POM Reynaldo Peña	Force: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña used physical force against § 87(2)(b)	
E . POM Reynaldo Peña	Force: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña restricted § 87(2)(b) breathing.	
F . POM Reynaldo Peña	Abuse: At 158th Street and Park Avenue in the Bronx. Police Officer Reynaldo Peña strip-searched § 87(2)(b)	
G . POM Reynaldo Peña	Off. Language: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña made remarks based upon the perceived mental disability of § 87(2)(b)	
H . POM Reynaldo Peña	Discourtesy: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña spoke discourteously to § 87(2)(b)	
I . POM Maximo Gomez	Discourtesy: At the 44th Precinct stationhouse in the Bronx, Police Officer Maximo Gomez spoke discourteously to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J . SSA Kevin Grayson	Abuse: At the 44th Precinct stationhouse in the Bronx, Sergeant Kevin Grayson authorized the strip search of § 87(2)(b)	
K . POM Reynaldo Peña	Abuse: At the 44th Precinct stationhouse in the Bronx, PO Reynaldo Peña made a sexually suggestive remark to § 87(2)(b)	
L . POM Maximo Gomez	Abuse: At the 44th Precinct stationhouse in the Bronx, Police Officer Maximo Gomez made a sexually suggestive remark to § 87(2)(b)	
M . POM Corey Graves	Abuse: At the 44th Precinct stationhouse in the Bronx, Corey Graves made a sexually suggestive remark to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
	§ 87(2)(g), § 87(4-b)	
	§ 87(2)(g), § 87(4-b)	

Case Summary

On February 7, 2019, § 87(2)(b) filed this complaint with the CCRB via phone.

On February 6, 2019, at approximately 6:30 p.m. § 87(2)(b) was standing in front of § 87(2)(b) in the Bronx. He was approached by PO Reynaldo Peña off the 44th Precinct, who was in a marked police van with PO Maximo Gomez, Sgt. Kevin Grayson, and PO Corey Graves, all of the 44th Precinct. When § 87(2)(b) first saw PO Peña, he ran, and PO Peña and Sgt. Grayson pursued him (**Allegation A- Stop-** § 87(2)(g) **Allegation B- Stop-** § 87(2)(g). After a brief foot pursuit, § 87(2)(b) was taken to the ground at East 158th Street and Park Avenue (**Allegation C- Force-** § 87(2)(g). After handcuffing § 87(2)(b), PO Peña allegedly placed his knee on the side of § 87(2)(b) neck, and restricted his breathing (**Allegation D- Force-** § 87(2)(g) **Allegation E- Force-** § 87(2)(g). Just before he was placed in a Department vehicle, PO Peña allegedly pulled his pants down and strip-searched him (**Allegation F- Abuse of Authority-** § 87(2)(g).

PO Peña waited in the police van with § 87(2)(b) and allegedly called § 87(2)(b) “retarded” (**Allegation G- Offensive Language-** § 87(2)(g). PO Peña said to § 87(2)(b) “I don’t want your fucking money” (**Allegation H- Discourtesy-** § 87(2)(g).

At the 44th Precinct stationhouse, PO Gomez told § 87(2)(b) to “shut the fuck up” (**Allegation I- Discourtesy-** § 87(2)(g). At the stationhouse, Sgt. Grayson authorized PO Peña to strip-search § 87(2)(b) (**Allegation J- Abuse of Authority-** § 87(2)(g). During the strip search in the stationhouse, PO Peña, PO Gomez, and PO Graves allegedly called § 87(2)(b) “little dick,” and allegedly repeated it when they lodged him in the holding cells (**Allegation K- Abuse of Authority-** § 87(2)(g) **Allegation L- Abuse of Authority-** § 87(2)(g) **Allegation M- Abuse of Authority-** § 87(2)(g).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was released from police custody after being issued a criminal summons for disorderly conduct by PO Peña (Board Review 01).

Video footage for this incident was obtained from PO Peña’s and PO Gomez’s body-worn cameras, from the NYCHA Morrisania Air Rights and Jackson Houses, and from the 44th Precinct stationhouse front desk and holding cells. The footage from NYCHA did not show any police interaction. The video from the NYPD holding cell showed police interaction with § 87(2)(b) but did not show any apparent allegations.

Findings and Recommendations

Allegation (A) Abuse of Authority: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña stopped § 87(2)(b)

Allegation (B) Abuse of Authority: At East 158th Street and Park Avenue in the Bronx, Sergeant Kevin Grayson supervised the stop of § 87(2)(b)

It is undisputed that PO Peña stopped § 87(2)(b). When PO Peña did so, he was in the presence of his supervisor, Sgt. Kevin Grayson.

§ 87(2)(b) testified that he was in front of § 87(2)(b) in the Bronx. He had just seen a friend. He was waiting for a taxi. He saw a marked blue and white van, with no safety lights on, pull up across the street. § 87(2)(b) walked a short way to get a better view of the officers, and then the officers started chasing him, without saying anything to him first.

PO Peña is the Housing Neighborhood Coordination Officer for the 44th Precinct. He testified that all four corners at East 158th Street and Park Avenue are known for sales of such drugs as marijuana, heroin, and ecstasy. On the incident date, he was patrolling in a van with Sgt. Grayson, PO Graves, and PO Gomez for all known crime conditions. At East 158th Street and Park Avenue, he saw several individuals in front of a deli. One was a known gang member, two had prior arrests for crack cocaine, and PO Peña had arrested another one for being in a building he did not live in. They were six to 10 car lengths from § 87(2)(b) at the time. They called out—PO Peña could not remember what the call is, but it is generally “Yo,” “50,” or, “Whoop whoop”—to warn other people on the block that there were police in the area. PO Peña could not tell where this call was being directed.

When PO Peña passed § 87(2)(b) in the police van, he saw § 87(2)(b) standing in front of § 87(2)(b). He observed him for approximately one minute. § 87(2)(b) changed direction and stepped towards East 158th Street and Park Avenue. PO Peña then lost sight of § 87(2)(b) for approximately two minutes while the police van circled the block. PO Peña told the other officers in the van that if § 87(2)(b) was still in the same place by the time he got back, then PO Peña would stop him. § 87(2)(b) was still standing in front of § 87(2)(b) when the police van returned. When PO Peña left the van to stop § 87(2)(b), § 87(2)(b) did a “stutter step,” in which he briefly stepped in one direction to give the appearance of walking that way, and then changed direction.

PO Peña’s observations about § 87(2)(b) were, to that point, that he changed directions on seeing police. He did not make any additional observations that contributed to his stopping § 87(2)(b).

Sgt. Grayson testified that before the incident, elderly residents of § 87(2)(b) complained to him at “Build-a Block” meetings that drug dealers were selling drugs at night in front of § 87(2)(b) where security cameras would not capture them. Sgt. Grayson saw § 87(2)(b) standing in front of the building, holding his waistband. Sgt. Grayson did not see anything in his hands besides his waistband. When Sgt. Grayson first noticed him, the van was going about 10 miles per hour. Sgt. Grayson said that from five feet away, he may have seen § 87(2)(b) make a motion like he was discarding something. Sgt. Grayson did not make any additional observations that made him believe that § 87(2)(b) had contraband. Sgt. Grayson asked PO Peña if he knew § 87(2)(b). PO Peña said that he did not.

PO Peña suggested to Sgt. Grayson that the officers do a vertical patrol of the building at this point, and Sgt. Grayson thought that they planned to ask § 87(2)(b) what he was doing in front of the building. § 87(2)(b) ran from the police when the police van stopped next to him. When PO Peña left the car, Sgt. Grayson left with him, and ran about 10 yards behind PO Peña and § 87(2)(b).

PO Gomez testified to the area having a high volume of crack cocaine and heroin sales. He remembered that at the outset of the incident, officers were about to do a vertical patrol inside of § 87(2)(b). He only realized that § 87(2)(b) was being stopped when he saw PO Peña running after him.

PO Graves stated that § 87(2)(b) was known to police as a drug-prone location, particularly for crack cocaine. He learned that PO Peña intended to approach § 87(2)(b) when he heard PO Peña remark that § 87(2)(b) looked suspicious, and wanted to conduct an investigation. The decision was made to conduct an investigation when the van was about 50 feet past where § 87(2)(b) was standing. PO Graves saw § 87(2)(b) when the van circled back around to the entrance of § 87(2)(b).

All of the officers testified that § 87(2)(b) started running when the van stopped and PO Peña got out.

Criminal Summons #§ 87(2)(b) completed by PO Peña, indicated that PO Peña observed § 87(2)(b) on a public sidewalk, “with intent to cause a disruption, intentionally obstruct pedestrian traffic by standing in the middle of said public sidewalk.”

The investigation determined by a preponderance of the evidence that PO Peña saw § 87(2)(b) standing on the sidewalk, and discussed stopping him with his sergeant, Sgt. Grayson, as well as with the other officers in the car. The investigation could not credit Sgt. Grayson’s statement that § 87(2)(b) motioned as if discarding something, as no other officer testified to making this observation.

PO Peña’s reasons for stopping § 87(2)(b) were that he was standing on the sidewalk, in front of a drug-prone location, and that he changed direction when he saw police. § 87(2)(b) statement that he changed location when he saw the police van corroborates that § 87(2)(b) moved when he saw the police. The preponderance of the evidence also suggests that § 87(2)(b) ran when the police officers approached him, and that PO Peña ran after him.

People v. Holmes, 81 N.Y.2d 1056 (1993) held that police pursuit is a seizure tantamount to a stop, and must be justified by reasonable suspicion. The police pursuit in this case was not justified by the fact that the officers had an objective credible reason to approach the defendant; he was in a “known narcotics location” with an unidentified bulge in his jacket pocket, and fled when police approached him (Board Review 27). In People v. Furs, 149 A.D.3d 1098 (2017), officers did not have reasonable suspicion to pursue a male individual who exited a slow-moving vehicle while holding his waistband, and then ran when the police approached him (Board Review 28).

PO Peña’s total observations of § 87(2)(b) that is, that he was standing in front of a narcotics-prone building, and that he walked in a different direction when he saw the police, § 87(2)(b)

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Allegation (C) Force: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña used physical force against § 87(2)(b)

It is undisputed that PO Peña’s pursuit of § 87(2)(b) went the following route: the two went south on Park Avenue. § 87(2)(b) crossed Park Avenue, turned east on East 158th Street, and began running north on Park Avenue. He was handcuffed by PO Peña shortly thereafter.

Neither PO Peña’s nor PO Gomez’s body-worn camera captures § 87(2)(b) initially being apprehended by PO Peña (Board Review 02). Surveillance footage obtained from two

nearby NYCHA buildings as well as fieldwork did not yield footage that captured this incident (Board Review 02, Board Review 24).

§ 87(2)(b) who stands 5'9" tall and weighs 140 pounds, and was 17 years old at the time of the incident testified that the officers chased him through the aforementioned route. At one point, when he reached East 158th Street, § 87(2)(b) changed direction and ran through two parked cars. No officer issued him any commands before PO Peña took him to the ground by grabbing on the back of his hoodie sweatshirt.

PO Peña, who stands 5'10" tall, and weighs 145 pounds, and was 28 years old at the time of the incident, stated that he told § 87(2)(b) to stop, jumped over the scaffolding that separated the sidewalk from the street, and started running after him. He corroborated that § 87(2)(b) ran between two cars during the pursuit. He also said that he pulled on § 87(2)(b) hoodie sweatshirt to get him to the ground.

Sgt. Grayson, who was following behind PO Peña during the chase, stated that the ground was wet—it had just rained—and § 87(2)(b) slipped and fell at the end of the pursuit. By the time PO Graves caught up to § 87(2)(b) he was already handcuffed. PO Gomez was following the other officers in a van at the time. He saw § 87(2)(b) fall after § 87(2)(b) ran between two cars.

All of the officers testified that they had not directly interacted with § 87(2)(b) before this incident.

Given that both § 87(2)(b) and PO Peña testified that PO Peña took § 87(2)(b) to the ground by pulling on the back of § 87(2)(b) sweatshirt, the investigation credits that PO Peña did so. The investigation also determined by a preponderance of evidence that § 87(2)(b) took the pursuit with the officers into the roadway.

Patrol Guide Procedure 221-01 lists a number of factors to evaluate the use of force, which include the severity of the circumstances, the actions taken by the subject, the duration of the action, the size of the subject in relation to the officers, the immediacy of threat or harm to the subject, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, the number of subjects in comparison to the officer, the size, age, and condition of the subject in comparison to the officer, any known violent history from the subject, a presence of a hostile crowd or agitators, and whether the subject was under the influence of any substance that would affect pain tolerance or behavior (Board Review 25). Patrol Guide 221-03 lists a "forcible takedown" as the Level 1 Force, the lowest amount of force (Board Review 26).

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Force: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña used physical force against § 87(2)(b)

Allegation (E) Force: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña obstructed § 87(2)(b) breathing.

Whether PO Peña put his knee on § 87(2)(b) neck and obstructed his breathing while he handcuffed § 87(2)(b) is in dispute.

The investigation could not secure any video footage, from officers' body-worn camera or otherwise, that shows PO Peña handcuffing § 87(2)(b). § 87(2)(b) alleged during both his CCRB interview and his two IAB interviews that PO Peña held him on the ground by placing his knee on his neck (Board Reviews 03, 04, and 05). In a follow-up phone conversation with the CCRB, § 87(2)(b) described the action as PO Peña placing his knee on the right side of § 87(2)(b) neck. This action restricted § 87(2)(b) breathing for approximately 40 seconds (Board Review 06). § 87(2)(b) alleged that he sustained scratches and bruises to his hip, cheekbone, and hand, for which he did not seek medical treatment.

PO Peña denied that he put his knee on § 87(2)(b) neck, and that he restricted § 87(2)(b) breathing.

PO Graves did not see § 87(2)(b) being handcuffed. PO Gomez did not remember seeing PO Peña placing any knees on § 87(2)(b) neck. Sgt. Grayson did not see PO Peña placing any knees on § 87(2)(b) neck, and did not observe § 87(2)(b) having difficulty breathing.

§ 87(2)(g)
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Allegation (F) Abuse of Authority: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña strip-searched § 87(2)(b)

It is undisputed that after PO Peña handcuffed § 87(2)(b) and before he placed him in the prisoner van, he searched § 87(2)(b). Whether PO Peña strip-searched § 87(2)(b) before placing him in the police van is in dispute.

None of the officers' body-worn camera shows § 87(2)(b) below the waist at the time that he is searched in front of the police van. In PO Gomez's and PO Peña's body-worn camera videos, § 87(2)(b) says, "Touch it all," to the officers, but neither PO Peña's nor PO Gomez's camera visually captures the alleged search, nor where PO Peña's hands are at the time (Board Review 02).

§ 87(2)(b) stated that after PO Peña placed him in handcuffs, and before he placed him in his police van, PO Peña pulled down his pants to his knees, and exposed his underwear. PO Peña searched in his underwear and under his waistband before he placed him in handcuffs. At the time, § 87(2)(b) was wearing a black sweat suit, a black coat, and black sneakers.

PO Peña admitted to searching § 87(2)(b) just before he was placed in the police vehicle. He searched the interior of § 87(2)(b) waistband. § 87(2)(b) pants had fallen down during the chase, and his underwear was exposed at the time that he apprehended § 87(2)(b). PO Peña denied intentionally pulling down § 87(2)(b) pants to search. He searched under § 87(2)(b) waistband, just at the sides of § 87(2)(b) hips. § 87(2)(b) was wearing a pair of black sweatpants, a jacket, and sneakers.

PO Graves saw PO Peña searching § 87(2)(b) jacket pockets before he placed him in the police van, but did not see § 87(2)(b) underwear exposed. PO Gomez saw the search, and testified that § 87(2)(b) pants were up at the time. Sgt. Grayson remembered that § 87(2)(b) pants fell down during the pursuit, but reported that PO Peña did not pull them down.

§ 87(2)(g)

Allegation (G) Offensive Language: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña made remarks based upon the perceived mental disability of

§ 87(2)(b)

Whether PO Peña referred to § 87(2)(b) as “retarded” is in dispute.

PO Peña’s body-worn camera was operating during the entire time that he was in the van with § 87(2)(b). He began the recording just after he handcuffed § 87(2)(b) and he ended the recording just before he lodged him into the holding cells at the 44th Precinct stationhouse. The body-worn camera did not capture PO Peña calling § 87(2)(b) “retarded” (Board Review 02, Board Review 11, timestamps 00:00:00 and 00:18:40 in the video player).

Per § 87(2)(b) when he was waiting alone in the van with PO Peña, while PO Graves, Sgt. Grayson, and PO Gomez were searching the sidewalk outside of § 87(2)(b) for any contraband that he dropped, PO Peña called him “retarded.”

PO Peña denied calling § 87(2)(b) “retarded.”

§ 87(2)(g)

Allegation (H) Discourtesy: At East 158th Street and Park Avenue in the Bronx, Police Officer Reynaldo Peña spoke discourteously to

While PO Peña and § 87(2)(b) were waiting in the police van together, § 87(2)(b) asked PO Peña to count his money. PO Peña’s body-worn camera showed that he said to § 87(2)(b) “I don’t want your fucking money.” (Board Review 02, Board Review 07, entirety of the clip in the video player).

When asked why he made this statement, PO Peña said that he did to dispel § 87(2)(b) suspicion that PO Peña wanted to take his money.

Patrol Guide Procedure 200-02 reaffirms the commitment of the NYPD to rendering its services with courtesy and civility (Board Review 08).

At the time that PO Peña used profanity against § 87(2)(b) was handcuffed and in the back of a police van, waiting to be transported to the 44th Precinct stationhouse for processing.

§ 87(2)(g)

Allegation (I) Discourtesy: At the 44th Precinct stationhouse in the Bronx, Police Officer Maximo Gomez spoke discourteously to

Whether PO Gomez spoke discourteously to § 87(2)(b) is not in dispute. During his CCRB interview, PO Gomez, without being asked directly, told the investigation that he told § 87(2)(b) to “shut the fuck up” while § 87(2)(b) was being processed at the front desk. He said that he made this statement in light of § 87(2)(b) threatening to sue the officers, and insulting them.

In addition, PO Peña’s body-worn camera captures PO Gomez telling § 87(2)(b) to “shut the fuck up, and that’s it. Shut the fuck up.” while he is at the front desk at the 44th Precinct stationhouse (Board Review 02, Board Review 10, entirety of the clip in the video player).

Patrol Guide Procedure 200-02 states that officers should provide their services to the public with “courtesy and civility” (Board Review 08).

§ 87(2)(g)

Allegation (J) Abuse of Authority: At the 44th Precinct stationhouse in the Bronx, Sergeant Kevin Grayson authorized the strip search of § 87(2)(b)

That Sgt. Grayson authorized the strip search of § 87(2)(b) and that the search did not yield any contraband is not in dispute.

PO Peña’s body-worn camera records the entirety of § 87(2)(b) time in the police van. This video does not show PO Peña at any time telling § 87(2)(b) to stop moving or to keep still while he was in the van. He keeps his flashlight trained on § 87(2)(b) for the entirety of the time that § 87(2)(b) is in the van (Board Review 02; Board Review 11, timestamps 00:00:00 and 00:18:40 in the video player).

§ 87(2)(b) testified that PO Peña, PO Graves, and PO Gomez took him into a rear holding cell once he was signed in at the front desk. PO Peña instructed him to remove all of his clothing, and squat and cough. § 87(2)(b) complied, and nothing was recovered.

Sgt. Grayson said that he authorized the strip search of § 87(2)(b) because he thought that he had contraband on his person. Prior to § 87(2)(b) arrest, § 87(2)(b) was at § 87(2)(b) at night, where Sgt. Grayson believed, due to community complaints, that there were drugs being sold in the building. In addition, § 87(2)(b) fleeing from police caused Sgt. Grayson to believe that § 87(2)(b) was hiding drugs. Sgt. Grayson also observed § 87(2)(b) moving back and forth in the van where he was being held. When asked if there were any additional factors that led Sgt. Grayson to believe that § 87(2)(b) had contraband on his person, Sgt. Grayson could not remember any.

The last place where Sgt. Grayson observed § 87(2)(b) was at the front desk of the 44th Precinct stationhouse. Sgt. Grayson maintained sight of PO Peña and § 87(2)(b) during the pursuit, and did not see § 87(2)(b) drop anything.

PO Peña testified that he asked Sgt. Grayson if he could strip-search § 87(2)(b). As he was chasing § 87(2)(b) dropped a small clear bag, smaller than a sandwich bag on the ground, which PO Peña believed contained drugs. This bag was not ultimately recovered. All of the other officers present, Sgt. Grayson, PO Graves, and PO Gomez, canvassed the area for the bag afterwards.

PO Peña did not tell the other officers about the bag, but said instead that they knew to canvass for the bag because the officers could “read” each other. PO Peña testified to a number of types of drugs being sold in the building, such as marijuana, heroin, and ecstasy, and that drug dealers frequently hide drugs in their crotch. He did not list any other reasons for seeking the strip

search. Sgt. Grayson authorized PO Peña to conduct the strip search, which ultimately yielded negative results.

PO Graves testified that during the pursuit, he saw § 87(2)(b) reach into one of his pockets, and “flicker” his wrist, that suggested to him that he had dropped something. He also stated that during the canvass for anything that § 87(2)(b) may have dropped, he heard PO Peña tell § 87(2)(b) to keep still while he was in the van. He did not know what behavior preceded this command, and he did not at any point see § 87(2)(b) move around or shift things on his person while he was being transported or lodged in the cells. He did not know why the strip search was authorized. He was present during the strip search.

PO Gomez was present during the strip search. He did not know why it was being conducted, nor what contraband was being sought during this search. Nothing was ultimately recovered from the strip-search.

PO Peña, PO Graves, and PO Gomez all testified that they were the only ones present when § 87(2)(b) was strip-searched.

Command log entries indicate that the strip search yielded negative results (Board Review 08).

People v. Hall 10.N.Y. 3D 303 (2008) stipulates that officers must have reasonable suspicion that someone is hiding contraband on their person before strip-searching them (Board Review 12). Patrol Guide Procedure 208-05 requires that the supervisor conducting the strip search ensure that it is done so in a proper manner (Board Review 13).

§ 87(2)(g)

When asked directly, Sgt. Grayson did not include § 87(2)(b) dropping anything as a reason that he might have drugs on his person. Furthermore, according to all officers interviewed, Sgt. Grayson was not present during the strip search § 87(2)(g)

Allegation (K) Abuse of Authority: At the 44th Precinct stationhouse in the Bronx, Police Officer Revnaldo Peña made a sexually suggestive remark to § 87(2)(b)

Allegation (L) Abuse of Authority: At the 44th Precinct stationhouse in the Bronx, Police Officer Maximo Gomez made a sexually suggestive remark to § 87(2)(b)

Allegation (M) Abuse of Authority: At the 44th Precinct stationhouse in the Bronx, Police Officer Corey Graves made a sexually suggestive remark to § 87(2)(b)

Whether PO Peña, PO Gomez, and PO Graves sexually harassed § 87(2)(b) is in dispute.

§ 87(2)(b) testified during his CCRB interview that while he was being strip-searched by PO Peña, PO Gomez and PO Graves were also present. They all called him “little dick” during

the search. They also allegedly called § 87(2)(b) “little dick” when they brought him into the holding cell, in front of two other prisoners, a tall black male individual and a Hispanic male individual with his hair styled in braids.

§ 87(2)(b) repeated this allegation when he was interviewed, both over the phone and in person, with IAB (Board Review 03, Board Review 04, and Board Review 05).

PO Peña, PO Gomez, and PO Graves all denied that they called § 87(2)(b) “little dick” at any point.

Video footage from the holding cells at the 44th Precinct stationhouse showed § 87(2)(b) being brought to a holding cell by PO Peña and PO Gomez. He is alone at the time that he is taken into the holding cell, but was joined shortly thereafter by a prisoner with his hair styled into braids (Board Review 14, at the 00:14:26 and 00:19:22 mark in the video player). No other prisoner appears in the video with § 87(2)(b) for the rest of the video.

A male individual whose arrest processed around the time that § 87(2)(b) was in the holding cells, and whose arrest report listed that his hair was styled into braids at the time of the incident (Board Review 23), § 87(2)(b) was reached by the investigation.

§ 87(2)(b) remembered § 87(2)(b) but remembered that the officers were quiet during § 87(2)(b) processing, and did not hear them call him “little dick,” or refer to genitalia. § 87(2)(b) said that during § 87(2)(b) processing, due to being brought in and out of the cells, he did not see the entirety of § 87(2)(b) processing (Board Review 15). § 87(2)(b) declined to participate in the investigation beyond a phone statement (Board Review 16).

As noted above, video footage reflected that there were no other prisoners present at the time that § 87(2)(b) was lodged into the cells. He was lodged in alone, and then joined by § 87(2)(b)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g), § 87(4-b)
[REDACTED]

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
 - [REDACTED]
- PO Peña has been a member of service for four years. Four previous CCRB complaints, with seven prior allegations, have been filed against him. None has been substantiated. One case, 201806278, is still under investigation.
 - § 87(2)(g) [REDACTED]
- Sgt. Grayson has been a member of service for 21 years. Nine previous complaints, with 18 prior allegations, have been filed against him. None has been substantiated. One case, 201808544, is still under investigation.
 - § 87(2)(g) [REDACTED]
- PO Gomez has been a member of service for four years. Three prior complaints, with six prior allegations, have been filed against him. None has been substantiated. Three other cases, 201808544, § 87(2)(g) [REDACTED] and 201909174 are still under investigation.
 - § 87(2)(g) [REDACTED]
- PO Graves has been a member of service for five years. Four prior complaints, with 12 prior allegations have been filed against him. None has been substantiated.

- § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 10, 2019, there was no Notice of Claim filed in regards to this case (Board Review 18). On November 22, 2019, a second request for a Notice of Claim was submitted to the New York City Office of the Comptroller. The results will be added to the case file upon receipt (Board Review 22).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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